



File No.: EXP202318557

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (*hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection on December 4, 2023. The complaint is directed against the entity INNOTECH CENTRO ESPECIAL DE EMPLEO, S.L. with NIF B05476965 (hereinafter, the respondent). The reasons for the complaint are as follows:

The claimant states that upon entering the respondent company (from which he resigned on (...)), (...) to be registered with Social Security, he was uninsured for 5 days. Furthermore, he expresses that his working hours exceeded the maximum of 38 and a half hours, being a Special Employment Center, without respecting the collective agreement and freezing his salary.

Additionally, in the company's surveillance activities, according to the claimant, his superior has a (...) for the total and absolute control of all his workers, such that in the office of ***LOCALIDAD.1 there are surveillance cameras everywhere. Thus, the interior cameras of the office, (...). Moreover, these cameras capture audio.

The claimant, to achieve a change of job position, had to install and configure the camera himself, having to point it towards his desk.

The claimant expresses that the fact of being continuously monitored and listened to during the 10-12 hours of daily work has undermined his self-esteem and concentration in his tasks (he was dedicated to the design and drafting of everything related to the website ***WEB.1). He mentions that if he was away from his workstation for more than 5 minutes, he would quickly receive a call to return to his position.

He provides (Annex I): a) a complaint letter to the AEPD, dated December 4, 2023; b) a complaint letter, unsigned and undated, to the Provincial Labor and Social Security Inspectorate of Palencia and/or the Provincial Labor and Social Security Inspectorate of Valladolid, which contains 2 screenshots of the 2 workstations of the claimant, showing the focus of the cameras, which he obtained by configuring the cameras himself.

He also provides a screenshot, which is not fully visible, of the camera audio configuration.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

Upon consulting the database of this agency, the complaint was forwarded on December 22, 2023, and was reiterated on January 5, 2024.

THIRD: On January 19, 2024, this agency received a letter from the respondent arguing the following regarding the "facts" described:

"We have 14 cameras from Prosegur (without audio recording) - we attach the contract - 5 cameras outside - 5 cameras inside the warehouse - 2 cameras in the workshop - 2 cameras in the office. We have 4 external deterrent cameras that are not connected to any video surveillance system. We have 2 cameras with video and audio recording: - 1 camera in the office - 1 camera in the workshop.

We are a Special Employment Center, where we work with various types of disabilities. Over the years, we have encountered several situations where a worker has suffered epileptic seizures; we have personnel with hearing problems in the workshop, and through the cameras, we have detected noises (such as the gas boiler or powered tools) that we have been able to hear through them, allowing us to resolve the issue.

For our special employment center and the people who are part of it with the various disabilities we have, it is necessary to have at least those two cameras with audio; the existence of these has always been notified in writing to the workers.

The use of these cameras is to prevent risks to the safety of the facilities, property, and persons arising from the activities carried out in the workplace, always respecting the principles of proportionality, minimum intervention, and guarantees.

We do not have cameras in changing rooms, restrooms, dining areas, or any area where the worker requires privacy.

The person responsible for monitoring the cameras is B.B.B. DNI ***NIF.1”

FOURTH: On March 4, 2024, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

FIFTH: According to the report obtained from the AXESOR tool, the entity INNOTECH CENTRO ESPECIAL DE EMPLEO, S.L. is a limited company, established in 2021, whose main object is: activities supporting companies, cleaning activities, rental, purchase, sale, exchange, possession, and exploitation of all types of real estate.

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SIXTH: On August 12, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the party being complained about, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR.

Consulting the database of this agency, the aforementioned Agreement of Initiation is recorded as on August 19, 2024.

SEVENTH: On August 30, 2024, a written statement was received from the party being complained about, in which the following is stated:

"The sanctioning file is based on a complaint from a worker, which lacks foundation and there is no evidence of the reported facts; the statements of the worker and some incomplete and illegible screenshots are not sufficient. Certainly, to impose a sanction, the facts must be verified and the facilities physically inspected, as was done in the past by the labor inspection, whose resolution was favorable to this company, as will be stated later.

This party categorically denies that the photos provided by the worker correspond to their workplace, thus, as we say, an inspection by the Data Protection Agency will be necessary.

The last vindictive act was the filing of the complaint that originated this initiation of sanctioning proceedings, which is also completely unfounded, with the sole purpose of causing harm to the company.

In the complaint itself, it is stated that he himself configured the camera that supposedly recorded his workplace, which is true, as only he, in his capacity as an IT professional, controlled the camera that captured images of the area where he was located. What is absolutely false is that it was one of the cameras that recorded audio.

And certainly, we deny that the photos provided were taken at his workplace. For all these reasons, the company is considering taking legal action against the worker due to all these false complaints with the sole purpose of causing harm.

Second. In fact, the existence of cameras that record audio is communicated to the workers, according to the documents I attach signed by such workers, who perform their work without any problems despite the existence of cameras, legally installed and under the protection of labor regulations.

From the indicated surveillance system, there are informative posters placed outside and inside the company in clear and visible locations, and moreover, the interior cameras are perfectly visible and their location is well known to the workers, as the complainant acknowledges, as they will have been able to verify in the photos attached in our first communication.

The document signed by the complainant is not retained, as when he left the company, he fraudulently

took all his file. But certainly, he was aware of the existence of the cameras; he was informed just like the rest of the workers, and certainly, in his capacity as a web designer, he configured and managed them according to his own decisions, and no type of violation of his personal or professional rights was caused.

Having established the above, the only "punishable act" that the file considers is the "presence of camera(s) of video surveillance permanently oriented towards the workplace, with the purpose of excessive control and affecting his professional and personal privacy."

For the reasons stated, I request that this document be considered presented along with the accompanying documents, and therefore, since this party has appeared in the hearing procedure granted, and in view of the allegations, the filing of the present sanctioning process be agreed upon. In the event that it is understood that the absence of infringement is not sufficiently accredited, it is requested that the present procedure be received for evidence and that the facilities be inspected in order to determine the existence or not of an infringement."

EIGHTH: On October 18, 2024, a is issued in which the filing of the procedure is proposed, as the facts subject to transfer to this agency have not been accredited.

Consulting the information bases of this Agency, the notification via electronic means is recorded, accessing the content of the administrative act on October 18, 2024.

From the actions carried out in the present procedure and from the documentation in the file, the following has been accredited:

PROVEN FACTS

First. The facts arise from the complaint dated December 4, 2023, through which the presence of a device disproportionately oriented towards his workplace is reported, as well as that the same obtains audio of the conversations.

Second. It is accredited that the main responsible entity is INNOTECH CENTRO ESPECIAL DE EMPLEO, S.L. with NIF B05476965, which does not deny the presence of cameras in the facilities.

Third. It is not accredited that the cameras of the system are disproportionately oriented towards the complainant's workplace.

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Fourth. It is evidenced by documentary evidence provided by the respondent that there is an informational clause regarding in the contracts signed by the employees.

Fifth. It is evidenced that the company that installed the system is PROSEGUR with contract (...).

LEGAL GROUNDS

I

Competence

According to the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Unfulfilled Obligation

In this case, the complaint dated 04/12/23 is examined, which essentially conveys the following:

"presence of camera(s) of video surveillance permanently directed towards the workstation, with the purpose of excessive control and affecting their professional and personal privacy."

In support of their claim, the complainant provides documentary evidence (Annex I) that confirms the presence in the company of device(s) for capturing images, permanently directed towards what was their workstation.

It should be noted that the employer may place surveillance cameras as deemed necessary, provided that they do not conflict with the fundamental rights of the workers.

Article 5.1 c) of the GDPR states: "adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed ('data minimization')."

It is worth remembering that individuals and/or companies are responsible for ensuring that the installed systems comply with current legislation, demonstrating that they meet all the requirements established by the applicable regulations.

According to Article 20.3 of the Workers' Statute: "the employer may adopt the measures they deem most appropriate for surveillance and control to verify compliance by the worker with their obligations and labor duties."

Article 89 of Organic Law 3/2018 (December 5) states:

1. Employers may process images obtained through camera or video camera systems for the exercise of the control functions of workers or public employees provided for, respectively, in Article 20.3 of the Workers' Statute and in public service legislation, as long as these functions are exercised within their legal framework and with the inherent limits thereof. Employers must inform, in advance and in a clear, concise, and express manner, the workers or public employees and, where applicable, their representatives, about this measure.

In the event that a flagrant act of illegality committed by workers or public employees has been captured, the duty to inform shall be deemed fulfilled when at least the device referred to in Article 22.4 of this organic law exists.

1. In no case shall the installation of sound recording systems or video surveillance in places designated for the rest or recreation of workers or public employees, such as changing rooms, restrooms, cafeterias, and similar places, be permitted.

1. The use of systems similar to those referred to in the previous sections for sound recording in the workplace shall only be permitted when the risks to the security of facilities, property, and persons arising from the activity carried out in the workplace are relevant, and always respecting the principles of proportionality, minimum intervention, and the guarantees provided in the previous sections. The deletion of sounds retained by these recording systems shall be carried out in accordance with the provisions of section 3 of Article 22 of this law.

The Constitutional Court, in Judgment 207/1996, states: "Furthermore, proportionality is a fundamental element in all areas where video surveillance systems are installed, given that there are numerous cases in which the violation of the aforementioned principle can lead to abusive situations, such as the installation of surveillance systems in common areas or restrooms of the workplace. Therefore, it is essential to avoid omnipresent surveillance to prevent the vulnerability of the individual."

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The presence of the aforementioned cameras in the entity being claimed implies that they must comply with the duty to inform the workers or, where applicable, their legal representatives, in accordance with Articles 13 and 14 of the GDPR, making it clear the "purpose of the processing of personal data."

If the entity has legal representation for the entire workforce, in addition to informing the workers, the members of the entity's union must also be informed, as by virtue of their status and in accordance with Article 64 of the Workers' Statute (ET), they must be informed by any means that guarantees the receipt of the information, which can be done, for example, through a statement.

The entity being claimed has acknowledged that two cameras have the capability to capture , taking into account the special characteristics of the workers at the Center, as well as the appropriateness of the measure under certain parameters.

The above does not exclude the obligation to duly inform the entire workforce of the fact that the installed system has the capability to capture audio, as well as the reason for such a measure (purpose stated in a reliable document).

Article 13 of the GDPR "Information to be provided when personal data are obtained from the data subject"

1. When personal data relating to a data subject are obtained from that data subject, the data controller shall provide all the information indicated below at the time the data are obtained: a) the identity and contact details of the controller and, where applicable, of the controller's representative; b) the contact details of the data protection officer, where applicable; c) the purposes of the processing for which the personal data are intended and the legal basis for the processing (...).

Article 72, paragraph 1 of the LOPDGDD (Organic Law 3/2018, December 5) regarding the statute of limitations for very serious infringements "shall expire after three years" and in particular the following: h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and Article 12 of this organic law.

IV

On 30/08/24, a letter was received by this Agency from the entity being claimed denying the veracity of the facts subject to the accusation, claiming it to be a personal vendetta by the worker (current Claimant) for spurious reasons.

For the purposes of this procedure, it provides copies of the contractual documentation of its employees regarding video surveillance, which states the following:

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"It is informed that the company has video recorders for the purpose of labor control. You will have the right to access the images upon request to the designated data controller and/or processor. (...) Direct access to the images from the cameras showing images of third parties will not be granted to the interested party."

Regarding the camera directed towards the claimant's workstation, it argues that it was the employee himself "who configured the camera," although it categorically denies that the provided photos correspond to "his workstation."

V

The principle of the presumption of innocence prevents attributing an administrative infringement when there has not been obtained and verified evidence of the facts that motivate the accusation or of the involvement of the alleged infringer in them. Applying the principle "in dubio pro reo" in case of doubt regarding a specific and determined fact, which obliges in any case to resolve such doubt in the most favorable manner for the interested party.

The presumption of innocence must govern without exceptions in the sanctioning system and must be respected in the imposition of any sanctions, as the exercise of the *ius puniendi* in its various manifestations is conditioned by the play of evidence and a contradictory procedure in which the parties can defend their positions. In this sense, the Constitutional Court in its Judgment 76/1990, of 26/04, considers that the right to the presumption of innocence entails: "that the sanction is based on acts or evidentiary means of charge or incriminating the reproached conduct; that the burden of proof lies with the accuser, without anyone being obliged to prove their own innocence; and that any insufficiency in the result of the evidence presented, freely evaluated by the sanctioning body, must result in an acquittal."

The presumption of innocence governs without exceptions in the sanctioning system and must be respected in the imposition of any sanction, whether criminal or administrative (TCo 13/1981), as the exercise of the sanctioning right in any of its manifestations is conditioned by the play of evidence and a contradictory procedure in which the parties can defend their own positions.

According to this principle, no sanction can be imposed based on the culpability of the accused if there is no evidentiary activity of charge, which in the assessment of the authorities or bodies called to resolve, destroys this presumption (TCo Auto 3-12-81).

VI

In view of the allegations made and having analyzed the evidence from both parties, first of all, it

cannot be established that any camera was permanently directed towards the employee's workstation, especially when the photographs provided show the workspace, but not the direct focus on the monitor screen.

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Regarding the information about the presence of cameras with the capability to capture audio, the defendant provides documentary evidence that includes a clause , informing about the presence of cameras for labor control purposes.

The defendant states that there are informational signs indicating that it is a video-monitored area for the relevant legal effects.

Furthermore, a copy of the Labor Inspection Report is provided, which, after visiting the center, indicates that the alleged circumstances have not been substantiated.

This agency, however, recommends that the contractual clauses clearly inform how to exercise rights (e.g., by providing a physical address or corporate email).

The recording of voice, in general, is considered a disproportionate method of labor control, as it is possible to adopt equally effective measures that are less intrusive to individuals' privacy and the protection of their personal data, since it would capture both conversations relevant to business interests and strictly private conversations.

It is also reminded that the presence of cameras with audio capability should be limited to work areas that require it due to the nature of the work to be performed, avoiding the capture of ambient sound from private conversations or in recreational spaces (e.g., employee break areas).

Finally, it is noted that this agency may proceed to conduct inspections of the facilities, being fully informed of the recommendations that have been presented for informational purposes, ensuring at all times the proportionality of the measure in accordance with the fundamental rights that are intended to be protected.

The Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ORDER the ARCHIVING of the current procedure as no administrative infringement has been substantiated in the matter at hand.

SECOND: TO NOTIFY this resolution to INNOTECH CENTRO ESPECIAL DE EMPLEO, S.L.

In accordance with the provisions of Article 50 of the LOPDGGD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGGD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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